

TRUSTS

IN RE THE ASHLEY STITES IRREVOCABLE SPECIAL NEEDS TRUST

CASE NUMBER: CVPB12-0027186

This matter is on calendar for hearing on a Petition for Order Authorizing Release of Blocked Funds and Purchase of Real Property. The matter has not been properly noticed. There is no proof of service of the Notice of Hearing and Petition for the beneficiary, Ashley Stites, or Margarita Vienneau pursuant to the Request for Special Notice filed on December 9, 2025. The Court notes the Petition requests to withdraw a sum that would significantly deplete the subject blocked account, which is a main asset of the trust. No information has been provided to permit the Court to determine if the remaining assets of the trust will be sufficient to provide ongoing maintenance of the real property and accomplish the purpose of the trust. The matter is continued to **Monday, August 3, 2026, at 2:30 p.m. in Department 44** for further proceedings on the Petition for Order Authorizing Release of Blocked Funds and Purchase of Real Property. A supplemental declaration is required to be filed to address the issues raised above. Petitioner is required to file and serve a new Notice of Hearing for the continued hearing date, along with a copy of the Petition and supplemental declaration, on all parties entitled to notice. **No appearance is necessary on today's calendar.**

IN RE: THE DUNGAN FAMILY TRUST DATED DECEMBER 21, 2017

CASE NUMBER: 24PB-0032424

This matter is on calendar for further proceedings on the Petition for Order Compelling Trustee to Account, Compelling Trustee to Provide Trust Information and For Redress of Breach of Trust for Unjust Enrichment. An opposition was previously filed. The parties previously advised the Court that the accounting has been completed. **An appearance is necessary on today's calendar to provide status of the amended Accounting and to discuss whether the matter should be set for a contested hearing.**

IN RE: FERRELL FAMILY TRUST

CASE NUMBER: 26PB-0033383

This matter is on calendar for hearing on a Petition for Order (1) Compelling Trustee to Account; (2) Instructing Trustee to Make Distributions; (3) for Redress of Breach of Trust; (4) for Redress of Breach of Fiduciary Duty; (5) for Surcharge of Trustee; and (6) for Unjust Enrichment. The matter has been properly noticed with proof of service on file. The Successor Trustee, Gail Olmstead, has filed an objection. **An appearance is necessary on today's calendar for setting of a contested hearing.**

IN RE: KENNETH C. DUKE REVOCABLE LIVING TRUST

CASE NUMBER: 25PB-0033104

This matter is on calendar for status of all Petitions. **An appearance is necessary on today's calendar.**

IN RE: MILENEWICZ-PENTA LIVING TRUST

CASE NUMBER: 26PB-0033358

This matter is on calendar for further proceedings on a Petition to Appoint Successor Trustee. This matter is being heard concurrently with case 33074. An amended Petition has not been filed to address the issues raised on June 1, 2026. The verification on page 4 of the Petition is unsigned. Probate Code Section 15660.5 states that the Public Administrator may be appointed as trustee if, among other things, "after reasonable inquiry, no other qualified person is willing to act as trustee." The Petition fails to address whether an inquiry has been made and whether the Trustor's siblings are qualified to act as

trustee. Additionally, Probate Code Section 15660.5 requires that “at the time of appointment and pursuant to the terms of the trust, the entire trust is then to be distributed outright.” Section 9 of the Trust provides that distribution to a minor beneficiary shall either be (1) held in trust for that minor beneficiary, or (2) paid to the parent, custodian, or guardian of that minor beneficiary. The Petition fails to address whether the trust is to be distributed outright or held in trust for the minors. The Court will require a Guardian Ad Litem be appointed for the minor beneficiaries. The matter is continued to **Monday, July 27, 2026, at 2:30 p.m. in Department 44** for further proceedings on the Petition to Appoint Successor Trustee. An amended Petition is required to be filed to address the issues raised above. Petitioner is also required to file and serve a new Notice of Hearing for the continued hearing date, along with a copy of the amended Petition, on all parties entitled to notice. A Guardian Ad Litem is required to be appointed for the minor beneficiaries. **No appearance is necessary on today’s calendar.**